

Q Unlike the proprietary world, awareness regarding the importance of patents and licensing structures is quite low in the open source space. How does OIN help to enhance such knowledge?

We conduct a fairly extensive educational programme in addition to spreading the word through interviews and media coverage. We have speakers that participate at numerous open source events around the globe. Also, we help to educate intellectual property professionals through our support of the European Legal Network and the creation of the Asian Legal Network, including regular Asian Legal Network meetings in India.

Q In what way does OIN help developers opting to use open source technologies?

We believe that all products and services, and in particular those based on open source technologies, should be able to compete on a level playing field. We help ensure this by significantly reducing the risk of patent litigation from companies that want to hinder new open source-based entrants. We also provide developers, distributors and users of Linux and other open source technologies that join OIN with access to valuable patents owned by us directly, and cross-licensed by our community members.

Q As over 2,200 participants have already joined in with the founding members, have patent threats to Linux reduced now?

There will always be the threat of patent litigation by bad actors. OIN was created to neutralise patent lawsuit threats against Linux – primarily through patent non-aggression community building and the threat of mutually assured destruction in patent litigation.

As the Open Invention Network community continues to grow, the amount of intellectual property that is available for cross-licensing will continue to grow. This will ensure that innovation in the core will continue, allowing organisations to focus

their energies and resources higher in the technology stack, where they can significantly differentiate their products and services.

Q Where do you see major patent threats coming from – are they from the cloud world, mobility or the emerging sectors like Internet of Things and artificial intelligence?

Linux and open source technology adoption will increase as more general computing technologies become the key building blocks in areas like the automotive industry. Many of the computing vendors that have been aggressive or litigious historically may try to use a similar strategy to extract licensing fees related to Linux.

This is one of the reasons that companies like Toyota, Daimler-Benz, Ford, General Motors, Subaru and Hyundai-Kia, among many others, have either joined OIN or are very close to signing on. In fact, Toyota made a significant financial contribution to OIN and is our latest board member.

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Q Don't you think that ultimately, this is a war with just Microsoft?

In the last few years, Microsoft has taken some positive steps towards becoming a good open source citizen. We have and will continue to encourage it to join OIN and very publicly demonstrate its commitment to shared innovation and patent non-aggression in

Linux and open source.

Q How do you view the integration of open source into major Microsoft offerings?

We see all this as recognition by Microsoft that its success does not have to come solely from proprietary software and standards. If it becomes a good open source citizen, it can also reap the benefits of innovation and cost efficiencies derived through the development, distribution and use of Linux. We have and will continue to cheer Microsoft to become an OIN licensee. This would publicly and tangibly demonstrate its support and commitment to patent non-aggression in Linux and open source.

Q In addition to your present role at OIN, you have successfully managed IP strategies at various tech companies. What is unique about developing an IP strategy for an open source company?

Over the last few years, as market forces have shifted, new legislation has been passed, and judicial precedents have been set – all technology companies have had to review their IP strategies. With the rapid adoption of open source by most technology vendors, it is becoming increasingly challenging to bifurcate organisations as open source vs non-open source.

We believe that today and in the future, successful companies — whether they are hybrid or pure-play open source companies — will take advantage of the benefits of shared core technology innovation. They will look to invest the majority of their resources higher in the technology stack. This move will help ensure the continued sales of their higher-value products through an IP strategy employing patents, defensive publications, or both—and by participating in an organisation like OIN.

Q Lastly, could it be an entirely patent-free future for open source in the coming years?

While software patents are not part of the landscape in India, they are part of the landscape elsewhere in the world. We don't foresee this changing anytime soon. 